

Attachment 7



CALIFORNIA High-Speed Rail Authority

Memorandum

DATE: April 21, 2026

TO: Emily Morrison, Chairperson of the Evaluation Selection Committee
Ed Fenn, ESC Member
Victor Diaz, ESC Member
Gilberto Baca, ESC Member
Bruce Roberts, ESC Member
Antonio Buelna, ESC Member

FROM: Tiffany Brown, Chairperson of the Pass/Fail Subcommittee

CC: Victor Lin, Contracting Office

SUBJECT: Pass/Fail Evaluation Subcommittee Report for Track and Systems Construction
Contract Request for Proposals (RFP) No. HSR25-89

This memorandum presents the results and recommendations of the Pass/Fail Subcommittee (Subcommittee) regarding the Proposals submitted by firms seeking to be selected for the Track and Systems Construction contract (Offerors). The Subcommittee's review and recommendations are based upon an analysis of each Proposal's compliance with the pass/fail and responsiveness requirements set forth in Request for Proposals No. HSR25-89.

I. Pass/Fail Subcommittee

The Subcommittee consists of the following persons:

Pass/Fail Subcommittee	
Tiffany Brown (Chair)	Program Delivery Services (AECOM)
Victor Lin	California High-Speed Rail Authority
Frank Lideros	California High-Speed Rail Authority
Gurleen Boparai	California High-Speed Rail Authority

The Subcommittee was supported in its evaluation by:

Kristal McCain	Program Delivery Services (Cordoba Corporation)
Elena Pacheco	California High-Speed Rail Authority

II. Receipt of Proposals

On April 9, 2026, the California High-Speed Rail Authority (Authority) received Proposals from two Offerors. Each Offeror's team members were included in Form D of the Proposals and are listed below.

Offeror	Team Members	Role
California High Speed Partners	Colas Rail Inc.	Equity Member
	RailWorks Track Services LLC	Equity Member
	Colas Rail SAS	Guarantor
	RailWorks Topco LP	Guarantor
	AtkinsRealis USA Inc.	Lead Designer

Offeror	Team Members	Role
Kiewit, Stacy Witbeck, Herzog – A Joint Venture (KSWH JV)	Kiewit Infrastructure West Co. (Kiewit)	Equity Member/Lead Contractor
	Stacy and Witbeck, Inc. (Stacy Witbeck)	Equity Member/Lead Contractor
	Herzog Contracting Corp. (Herzog)	Equity Member/Lead Contractor
	Kiewit Engineering Group Inc. (KEGI)	Lead Designer/Subcontractor

Upon receipt, the Proposals were stored in a secure area at the Authority's office at 770 L Street, Suite 800. Copies were distributed to the Evaluation and Selection Committee and the Pass/Fail, Technical, and Financial Subcommittees and were kept in locked areas when not in use, per the Confidentiality Agreement signed by all evaluation participants. All evaluation participants were also required to sign a Conflict of Interest Agreement prior to and post-proposal submission. After review and approval by the Authority's Office of Chief Counsel, electronic copies were distributed in Box to evaluation participants in a unique and secure cloud folder. The procurement team maintained a list of to whom hard copy binders were distributed. Prior to the start of the Proposal evaluation, all potential conflicts of interest disclosed by Offerors were reviewed by the Authority's Office of Chief Counsel and each Offeror was determined to be eligible to submit a proposal.

III. Responsiveness and Pass/Fail Review

The Proposals were reviewed to determine their satisfaction of the pass/fail and responsiveness criteria set forth in the RFP and the Pass/Fail Responsiveness Worksheet. Pursuant to the requirement set forth in the RFP, Section 7.3, all of the information identified must be included for the Proposal and required submittals to be considered responsive. Proposals or required submittals with missing or incomplete information may be rejected. KSWH JV obtained a "pass" on all pass/fail items in the RFP. However, the Subcommittee could not resolve California High Speed Partners' nonconformances by requesting a clarification through issuance of a clarification letter. Outstanding non-conformances are provided below.

A. California High Speed Partners

The following non-conformances have been noted for California High Speed Partners and are reflected in Attachment A.

Pursuant to the requirements of RFP, Instructions to Proposers (ITP), Section 6.6.2(f), the Offeror's Design Manager shall be a registered Professional Engineer in California. In addition, Attachment A of the ITP, the Minimum Qualifications Checklist, requires that the Technical Proposal identifies at least one Key Personnel who is a California registered Professional Engineer. Contrary to these requirements, California High Speed Partners does not currently have any Key Personnel who are a California registered Professional Engineer. In Form E, Key Personnel Matrix, one Key Personnel was listed as having a pending California Professional Engineer license. In Request for Clarifications No. 1, the Offeror was asked for the anticipated approval date for this individual's license. The Offeror's response was that this individual is currently pursuing licensure as a California Professional Engineer through the applicable transfer and evaluation pathways based on his status as a Chartered Engineer (CEng). Licensure is anticipated by December 31, 2026. In Request for Clarifications No. 1, the Offeror was also asked to confirm if their proposed Design Oversight Manager is a California Professional Engineer. The Offeror's response was that this individual is not currently licensed as a California Professional Engineer, and based on his status as a Chartered Engineer (CEng), he is eligible to pursue licensure through the applicable transfer and evaluation pathways, with an anticipated completion date of March 2027. Pursuant to the requirements of the ITP, Section 6.6.2(e), "Where the Work requires a professional license, at least one Key Personnel in responsible charge of the Work (subject to the Professional Engineers Act) shall be a California registered Professional Engineer in good standing by the date of Contract execution". Since California High Speed Partners does not have currently any Key Personnel listed who have a California Professional Engineer license and none of their proposed Key Personnel will have this license by the contract execution date, June 1, 2026, the Offeror is not compliant with this requirement. As such, California High Speed Partners does not meet all the requirements stated in RFP.

B. KSWH JV

KSWH JV has no outstanding non-conformances reflected in the Pass/Fail Responsiveness Worksheet.

IV. Reference Checks

The Subcommittee attempted to conduct reference checks on all references for which Offerors provided contact information on Forms L (Project Owner References) and M (Key Personnel References). Substantive contact has been made with several references for California High Speed Partners and KSWH JV. Of the references with which the Subcommittee has made substantive contact, no negative references for the Offeror firms or Key Personnel were reported. The references have indicated that they would rehire the Offeror firms or Key Personnel for future opportunities. Both Offerors have demonstrated their ability to successfully perform similar complex construction projects, meet milestones, and collaborate with their partners. Due to the time constraints for this evaluation and global time zone differences between the references and the Authority, references are still in the process of being pursued. Where substantive contact has not been made, the

Subcommittee has attempted to contact these references by e-mail and is currently awaiting responses. E-mail is the most practicable method of contact, as the references are global and do not have the same working hours as the Authority. This report will be updated if any negative references are received.

V. Recommendation

The Subcommittee recommends that the Evaluation Selection Committee find that KSWH JV passed the pass/fail and responsiveness criteria contained in the RFP and the Pass/Fail Responsiveness Worksheet in Attachment A. However, the Subcommittee recommends that California High Speed Partners is disqualified from the evaluation for RFP No. HSR25-89, as this Offeror did not pass the pass/fail and responsiveness criteria contained in the RFP and the Pass/Fail Responsiveness Worksheet in Attachment A.

Attachment A: Consolidated Pass-Fail Responsiveness Worksheets for California High Speed Partners and KSWH JV

ATTACHMENT A

Consolidated Pass-Fail Responsiveness Worksheets for California High Speed Partners and KSWH JV

Track and Systems Construction Contract – Request for Proposals HSR25-89

Pass/Fail Responsiveness Worksheet

This worksheet is for use by members of the Pass/Fail Subcommittee during its review.

Proposer: California High Speed Partners

Procurement: RFP No. HSR25-89

PASS/FAIL TASK	YES	NO	COMMENTS
GENERAL REQUIREMENTS			
The Proposal was received no later than 12:00 p.m. Pacific Time on April 9, 2026.	☒	☐	
The Proposal includes one original and five hard copies in separate 3-ring binders contained in a sealed shipping package.	☒	☐	
The Original is marked "Original" on its face and spine, and each copy is marked with the Proposer's name and numbered 1 through 5 on the spines.	☒	☐	
The Proposer submitted an electronic version of its Proposal to the Authority's cloud folder.	☒	☐	
The electronic Proposal is a single PDF file that is printable, searchable, and read-only. Each file name should include the RFP number, volume number, and Proposer team name as follows: HSR25-89_JohnDoeConsulting_Vol X.pdf.	☒	☐	Four PDFs: Volume 1A, 1B, Volume 2 and a supplemental Volume 2 with schedules.
The PDF file can be opened and printed without a password.	☒	☐	
The electronic version of Offeror's Proposal is identical to its hard copy Original.	☒	☐	
The Proposal is typed and all documents that require signature are manually or digitally signed by a person who is authorized to bind the Proposer or Proposer Team member, as applicable.	☒	☐	The California High-Speed Rail Partners, JV named Edward Kitzman as authorized to execute the proposal and contract.
Proposal is prepared in single-spaced type, 12 point font, on 8-1/2" x 11" sheets. Tables and graphics may be	☒	☐	

prepared using 10-point font size. Ledger sized 11" x 17" pages are allowed for schematics, organizational charts, other drawings and schedules, but not for narrative text. 11x17 design drawings may be submitted using binding post screws or similar binding format or larger sized (i.e., 11x17) binders more appropriate for oversized materials. All written submittals, regardless of paper size, must be included in the applicable volume.			
Pages shall be numbered at the bottom to show the page numbers and total number of pages in the response (e.g., Page 1 of 10, Page 2 of 10, etc.)	☒	☐	Page count does not include cover and divider sheets.
The Proposal meets the following page limitation requirements. A single side of an 8-1/2" x 11" or 11" x 17" sheet will be considered one page. a. The Executive Summary is no more than 10 pages in length, inclusive of text, selected photographs, and sketches. b. Resumes (attached to the Transmittal Letter) are only for Key Personnel and no more than 3 pages each. c. The Technical Proposal is no more than 100 pages in length, exclusive of the Executive Summary, resumes for Key Personnel, schedules, forms, sketches, renderings, drawings, and plans. d. Each plan is limited to 25 pages.	☒	☐	
The Proposal is tabbed and organized in the order set forth in the ITP at Section 6.	☒	☐	
VOLUME 1A – ADMINISTRATIVE SUBMITTALS			
The Proposal contains one original and five printed copies of Volume 1A.	☒	☐	
Each copy is numbered 1 through 5 on its spine, and a digital copy of Volume 1A was provided.	☒	☐	
Volume 1A is organized with a tab for each Proposer Team member identified in Form C, with all requisite administrative submittals for that respective team member included in their tabbed section.	☒	☐	
Form A: The Proposer submitted the Transmittal Letter (Form A) with the following information:	☒	☐	The acknowledgment that Proposer's questions were answered by the Authority is in the Form A Transmittal Letter response.

a. Transmittal Letter signed and completed by Official Representative. b. Letters of Commitment from Subcontractors (including all Key Subcontractors) attached. c. Surety letter (if applicable) as described in Section 6.4 of this ITP. d. Acknowledgment that Proposer's questions were answered by the Authority. e. Resumes from Key Personnel limited to three pages each. f. All Key Personnel submitted a signed statement attached to the Transmittal Letter indicating that they understand the project office will be located in the Authority's headquarters located at 770 L Street, Sacramento, CA 95814 or in the Central Valley area and are willing to work as required at the location as determined by the work schedule, as required by ITP Section 6.4.			
Form B: Identification of Proposer's RFP / Proposal Manager	☒	☐	Andrew Bailey is the proposal manager.
Form C: Information about Proposer, Equity Members, Lead Designer, Lead Contractor, and Guarantors	☒	☐	
Form D: Identification of Proposer Team Members	☒	☐	
Form E: Key Personnel Matrix	☒	☐	
Form F: Schedule of Subcontractor(s) – Is the form filled out and is evidence submitted with the Proposal that Subcontractors listed on Form F are registered with the Department of Industrial Relations.	☒	☐	
Form G: Past Performance Certification	☒	☐	
Form H: Organizational Conflicts of Interest Disclosure Statement	☒	☐	
Form I: Verification, Validation, and Self-Certification Commitment	☒	☐	
Form K: Past Projects	☒	☐	Forms K, L, and M are included behind the tabs for Joint Venture Equity Member firms Colas Rail Inc. and RailWorks Track Services LLC and Lead Design Firm AtkinsRéalis USA Inc.
Form L: Project Owner References	☒	☐	Forms K, L, and M are included behind the tabs for Joint Venture Equity Member firms Colas Rail Inc. and RailWorks Track Services LLC and Lead Design Firm AtkinsRéalis USA Inc.
Form M: Key Personnel References – Each firm identified in a Key Personnel position shall have two references.	☒	☐	Forms K, L, and M are included behind the tabs for Joint Venture Equity Member firms Colas Rail Inc. and RailWorks Track Services LLC and Lead Design Firm AtkinsRéalis USA Inc. Form M are also

			included behind the tabs for subconsultants Turner Engineering Corporation and TUV Rheinland of North America, Inc.
Form N: Disabled Veteran Business Enterprise Declaration – Including DGS PD 843 if Proposer intends to utilize Disabled Veteran Business.	☒	☐	Form N for each of the DVBE firms on the California High-Speed Partner's team is located behind the firm name and includes the DGS PD 843
Form S: Past Performance Questionnaire	☒	☐	Five total form S submitted for each equity member, guarantor, and lead designer.
Cert 1: Debarment, Suspension, Ineligibility, and Voluntary Exclusion Certification	☒	☐	62 certs submitted
Cert 2: Non-Collusion Affidavit	☒	☐	One cert submitted
Cert 3: Organizational Conflicts of Interest Affidavit	☒	☐	62 certs submitted.
Cert 4: Equal Employment Opportunity Certification	☒	☐	62 certs submitted
Cert 5: Non-Discrimination Certification	☒	☐	62 certs submitted
Cert 6: Certification Regarding Lobbying	☒	☐	Two certs submitted. One was from Railworks Track Services and the other was from Colas Rail.
Cert 7: Drug Free Workplace Program Certification	☒	☐	62 certs submitted
Cert 8: Buy America Compliance or Non-Compliance Certifications	☒	☐	62 certs submitted
Cert 9: Iran Contracting Certification	☒	☐	Two certs submitted
Cert 10: Darfur Contracting Act Certification	☒	☐	Two certs submitted
Cert 11: Certification Regarding Miscellaneous State Requirements	☒	☐	Two certs submitted
Cert 12: Proposer's Overall Project Small Business Goal Commitment Affidavit	☒	☐	One cert submitted
Cert 13: California Civil Rights Laws Certification	☒	☐	One cert submitted
Cert 14: DGS Forms - CCC 04/2017 and STD 204	☒	☐	One cert with clauses and STD 204
Cert 15: Generative Artificial Intelligence Disclosure	☒	☐	Cert submitted with no signature and the following language: "Cert 15: Generative Artificial Intelligence Disclosure is Not Applicable as CHSP does not intend to (1) provide GenAI as a deliverable to the State or (2) utilize GenAI, including GenAI from third parties, to complete all or a portion of any deliverable that materially impacts (i) functionality of a State system, (ii) risk to the State, or (iii) contract performance."
Surety Letter: The Proposal contains a letter from a California registered surety or insurance company, signed by an authorized representative, indicating that the Proposer is capable of fulfilling the bond requirement under this Contract as set forth in ITP Section 6.4.	☒	☐	Three sureties used (Travelers Casualty and Surety Company of America, Berkshire Hathaway Specialty Insurance Company and Liberty Mutual Insurance Company). Capacity is \$500 million per project and \$3.5 billion aggregate.
Joint and Several Liability: If a joint venture, the Proposal contains a letter signed by each Equity Member accepting joint and several liability.	☒	☐	
Department of Industrial Relations Registration: The Proposal shall contain proof of DIR registration, for the Proposer and each Equity Member as well as each subcontractor listed on Form F.	☒	☐	

Organizational Documents: The Proposal shall contain a copy of the articles of incorporation and bylaws, the joint venture agreement, partnership agreement, limited liability company agreement or equivalent organizational documents for the Proposer, each Equity Member, and any Guarantors.	☒	☐	
Legal Issues, Liabilities or Proceedings: The Proposal shall include a statement explaining what legal issues, liabilities, or proceedings are presently before the Proposer and any Joint Ventures.	☒	☐	
Environmental, Socioeconomic, and Governance Policies (ESG) – The Proposal shall include information and/or a report on its ESG efforts and policies per ITP Section 6.4.	☒	☐	Each JV member submitted their ESG info.
VOLUME 1B – FINANCIAL INFORMATION			
The Proposal contains one original and three printed copies of Volume 1B.	☒	☐	
Each copy is numbered 1 through 3 on its spine.	☒	☐	
A digital copy of Volume 1B was provided.	☒	☐	Uploaded in Box by the due date and time.
Volume 1B contains a credit rating.	☒	☐	
Volume 1B contains information pertaining to the Proposer's financial capacity criteria per ITP Section 6.5 (Profitability, Liquidity, Leverage, Performance, Other Financial Matters).	☒	☐	
Volume 1B contains recent Financial Statements per ITP Section 6.5(a) – (i).	☒	☐	Statements for the JV members and their guarantors are from December 2024.
Guarantor Letter of Support – If the Proposer or any Equity Member includes a Guarantor as part of its submission, then the Proposal shall include a letter from each Guarantor stating that it will provide a performance guaranty in the form as set forth in Section 6.5 of the RFP.	☒	☐	
VOLUME 2 – EXECUTIVE SUMMARY AND TECHNICAL PROPOSAL			

The Proposal contains one original and five printed copies of Volume 2.	☒	☐	
Each copy is numbered 1 through 5 on its spine.	☒	☐	
A digital copy of Volume 2 was provided.	☒	☐	Uploaded in Box by the Due Date and Time.
EXECUTIVE SUMMARY			
The Executive Summary contains a legal description of the Proposer's form of organization, identifies the lead entity, the percentage of interest held by the Equity Members, and all entities that will have joint and several liability for the Contract or that will provide Guaranties.	☒	☐	Colas -> 55% equity and RailWorks Track Services -> 45% equity
The Executive Summary contains a summary of the Proposer's understanding and approach to the Work, including procurement, construction, and coordination with third parties.	☒	☐	
The Executive Summary contains financial information regarding the Proposer's financial strength and capability to undertake and complete the Work.	☒	☐	Bonding capacity is \$500 million.
TECHNICAL PROPOSAL			
The Technical Proposal includes a description of the Proposer's understanding of the Work.	☒	☐	
The Technical Proposal identifies at least one Key Personnel who is a California registered Professional Engineer.	☐	☒	Volume 1A, Form E (Key Personnel Matrix) states that Simon D' Cruz's PE Civil CA license is pending. A clarification was asked in Round No. 1 regarding the anticipated approval date. The proposer's response is that approval is anticipated 12/31/2026. A clarification was also asked in Round No. 1 to determine if the Design Oversight Manager that was provided in the proposed Key Personnel has a CA PE license. The proposer's response was that this individual's CA PE license is anticipated March 2027. These dates indicate that the proposer will not have a CA PE license by contract execution (06/01/2026), as required by the ITP (Section 6.6.2(e)). Due to the proposer not identifying at least one Key Personnel who is a California registered Professional Engineer, the requirements of the ITP, Attachment A (Minimum Qualifications Checklist), are not met.
The Technical Proposal includes a schedule showing mobilization, construction of track and OCS work, design and construction of systems work, testing, and commissioning for the 119-mile First Construction Section.	☒	☐	
References – The Proposer provides at least three clients as references as required by section 6.6.2 (a) of the ITP.	☒	☐	
Reference Projects – The Proposer provides reference project(s) for each of their references as required by section 6.6.2 (b) of the ITP.	☒	☐	
Understanding of the Contract and Delivery Approach – The Technical Proposal contains a description of the	☒	☐	

Proposer's understanding of the contract and delivery approach as required by 6.6.2(c) of the ITP.			
Proposer Team (6.6.2(d)) – The Technical Proposal contains a description of the Proposer team.	☒	☐	
Key Personnel and Roles (6.6.2(e)) – The Technical Proposal includes information regarding California professional or other licenses held by the Proposer's Key Personnel.	☒	☐	
Understanding of Project Elements and Requirements – The Technical Proposal contains a description of the Proposer's understanding of the work requirements and approach to delivery as required by 6.6.2(f) of the ITP.	☒	☐	
Traction Power, Train Control, and Communications Systems Approach (6.6.2(h)) – The Technical Proposal contains a description of the Proposer's approach to delivery of the systems work.	☒	☐	
Risk Management and Integration Approach (6.6.2(i)) – The Technical Proposal contains a description of the approach for risk management and integration.	☒	☐	
O&M Phase Benefits (6.6.2(j)) – The Technical Proposal contains a narrative of the O&M phase benefits of Proposer's approach.	☒	☐	
Small Business (6.6.2 (k)) – The Technical Proposal includes a general description of how it will meet the Authority's Small Business Goals.	☒	☐	
Small Business Performance Plan (6.6.2 (k)) – The Technical Proposal includes a Small Business performance Plan.	☒	☐	
Small Business Communication Plan (6.6.2 (l)) – The Technical Proposal includes a Small Business Communication Plan.	☒	☐	
VOLUME 3 – PRICE PROPOSAL			
The Proposal contains one original volume labelled Price Proposal in a sealed envelope.	☒	☐	

Track and Systems Construction Contract – Request for Proposals HSR25-89

Pass/Fail Responsiveness Worksheet

This worksheet is for use by members of the Pass/Fail Subcommittee during its review.

Proposer: Kiewit, Stacy Witbeck, Herzog – A Joint Venture

Procurement: RFP No. HSR25-89

PASS/FAIL TASK	YES	NO	COMMENTS
GENERAL REQUIREMENTS			
The Proposal was received no later than 12:00 p.m. Pacific Time on April 9, 2026.	☒	☐	Received on April 8, 2026.
The Proposal includes one original and five hard copies in separate 3-ring binders contained in a sealed shipping package.	☒	☐	
The Original is marked "Original" on its face and spine, and each copy is marked with the Proposer's name and numbered 1 through 5 on the spines.	☒	☐	
The Proposer submitted an electronic version of its Proposal to the Authority's cloud folder.	☒	☐	
The electronic Proposal is a single PDF file that is printable, searchable, and read-only. Each file name should include the RFP number, volume number, and Proposer team name as follows: HSR25-89_JohnDoeConsulting_Vol X.pdf.	☒	☐	3 PDFs: Volume 1a (Administrative Submittals), Volume 1B (Financial Information), and Volume 2 (Executive Summary and Technical Proposal).
The PDF file can be opened and printed without a password.	☒	☐	
The electronic version of Offeror's Proposal is identical to its hard copy Original.	☒	☐	
The Proposal is typed and all documents that require signature are manually or digitally signed by a person who is authorized to bind the Proposer or Proposer Team member, as applicable.	☒	☐	POW names Eric M. Scott as the Authority to execute and deliver all documents for the Joint Venture for the project. All other documents signed by the appropriate proposer team member.
Proposal is prepared in single-spaced type, 12 point font, on 8-1/2" x 11" sheets. Tables and graphics may be	☒	☐	Liberal use of 11x17 sheets. The Executive summary is on a cardstock and folded into pages in the hard copies.

prepared using 10-point font size. Ledger sized 11" x 17" pages are allowed for schematics, organizational charts, other drawings and schedules, but not for narrative text. 11x17 design drawings may be submitted using binding post screws or similar binding format or larger sized (i.e., 11x17) binders more appropriate for oversized materials. All written submittals, regardless of paper size, must be included in the applicable volume.			
Pages shall be numbered at the bottom to show the page numbers and total number of pages in the response (e.g., Page 1 of 10, Page 2 of 10, etc.)	☒	☐	Pages are numbered except for certain pages (TOC, cover sheets, others). Some 11x17 sheets contain two page number footer, while some like the draft schedule at the end are numbered separately from the rest of the document.
The Proposal meets the following page limitation requirements. A single side of an 8-1/2" x 11" or 11" x 17" sheet will be considered one page. a. The Executive Summary is no more than 10 pages in length, inclusive of text, selected photographs, and sketches. b. Resumes (attached to the Transmittal Letter) are only for Key Personnel and no more than 3 pages each. c. The Technical Proposal is no more than 100 pages in length, exclusive of the Executive Summary, resumes for Key Personnel, schedules, forms, sketches, renderings, drawings, and plans. d. Each plan is limited to 25 pages.	☒	☐	Executive summary is 10 pages, but the 11x17 pages are numbers as two pages. Provided extra resumes.
The Proposal is tabbed and organized in the order set forth in the ITP at Section 6.	☒	☐	
VOLUME 1A – ADMINISTRATIVE SUBMITTALS			
The Proposal contains one original and five printed copies of Volume 1A.	☒	☐	
Each copy is numbered 1 through 5 on its spine, and a digital copy of Volume 1A was provided.	☒	☐	
Volume 1A is organized with a tab for each Proposer Team member identified in Form C, with all requisite administrative submittals for that respective team member included in their tabbed section.	☒	☐	
Form A: The Proposer submitted the Transmittal Letter (Form A) with the following information:	☒	☐	

a. Transmittal Letter signed and completed by Official Representative. b. Letters of Commitment from Subcontractors (including all Key Subcontractors) attached. c. Surety letter (if applicable) as described in Section 6.4 of this ITP. d. Acknowledgment that Proposer's questions were answered by the Authority. e. Resumes from Key Personnel limited to three pages each. f. All Key Personnel submitted a signed statement attached to the Transmittal Letter indicating that they understand the project office will be located in the Authority's headquarters located at 770 L Street, Sacramento, CA 95814 or in the Central Valley area and are willing to work as required at the location as determined by the work schedule, as required by ITP Section 6.4.			
Form B: Identification of Proposer's RFP / Proposal Manager	☒	☐	
Form C: Information about Proposer, Equity Members, Lead Designer, Lead Contractor, and Guarantors	☒	☐	
Form D: Identification of Proposer Team Members	☒	☐	
Form E: Key Personnel Matrix	☒	☐	
Form F: Schedule of Subcontractor(s) – Is the form filled out and is evidence submitted with the Proposal that Subcontractors listed on Form F are registered with the Department of Industrial Relations.	☒	☐	
Form G: Past Performance Certification	☒	☐	
Form H: Organizational Conflicts of Interest Disclosure Statement	☒	☐	
Form I: Verification, Validation, and Self-Certification Commitment	☒	☐	
Form K: Past Projects	☒	☐	
Form L: Project Owner References	☒	☐	
Form M: Key Personnel References – Each firm identified in a Key Personnel position shall have two references.	☒	☐	

Form N: Disabled Veteran Business Enterprise Declaration – Including DGS PD 843 if Proposer intends to utilize Disabled Veteran Business.	☒	☐	
Form S: Past Performance Questionnaire	☒	☐	
Cert 1: Debarment, Suspension, Ineligibility, and Voluntary Exclusion Certification	☒	☐	
Cert 2: Non-Collusion Affidavit	☒	☐	
Cert 3: Organizational Conflicts of Interest Affidavit	☒	☐	
Cert 4: Equal Employment Opportunity Certification	☒	☐	
Cert 5: Non-Discrimination Certification	☒	☐	
Cert 6: Certification Regarding Lobbying	☒	☐	
Cert 7: Drug Free Workplace Program Certification	☒	☐	
Cert 8: Buy America Compliance or Non-Compliance Certifications	☒	☐	
Cert 9: Iran Contracting Certification	☒	☐	Each firm of the joint venture (Kiewit Infrastructure, Stacy Whitbeck, and Herzog) all provided separate certifications.
Cert 10: Darfur Contracting Act Certification	☒	☐	Each firm of the joint venture (Kiewit Infrastructure, Stacy Whitbeck, and Herzog) all provided separate certifications.
Cert 11: Certification Regarding Miscellaneous State Requirements	☒	☐	Each firm of the joint venture (Kiewit Infrastructure, Stacy Whitbeck, and Herzog) all provided separate certifications.
Cert 12: Proposer's Overall Project Small Business Goal Commitment Affidavit	☒	☐	
Cert 13: California Civil Rights Laws Certification	☒	☐	
Cert 14: DGS Forms - CCC 04/2017 and STD 204	☒	☐	
Cert 15: Generative Artificial Intelligence Disclosure	☒	☐	
Surety Letter: The Proposal contains a letter from a California registered surety or insurance company, signed by an authorized representative, indicating that the Proposer is capable of fulfilling the bond requirement under this Contract as set forth in ITP Section 6.4.	☒	☐	From Travelers Casualty and Surety Company of America.
Joint and Several Liability: If a joint venture, the Proposal contains a letter signed by each Equity Member accepting joint and several liability.	☒	☐	Single letter signed by three JV members.
Department of Industrial Relations Registration: The Proposal shall contain proof of DIR registration, for the Proposer and each Equity Member as well as each subcontractor listed on Form F.	☒	☐	
Organizational Documents: The Proposal shall contain a copy of the articles of incorporation and bylaws, the joint venture agreement, partnership agreement, limited liability	☒	☐	

company agreement or equivalent organizational documents for the Proposer, each Equity Member, and any Guarantors.			
Legal Issues, Liabilities or Proceedings: The Proposal shall include a statement explaining what legal issues, liabilities, or proceedings are presently before the Proposer and any Joint Ventures.	☒	☐	
Environmental, Socioeconomic, and Governance Policies (ESG) - The Proposal shall include information and/or a report on its ESG efforts and policies per ITP Section 6.4.	☒	☐	
VOLUME 1B – FINANCIAL INFORMATION			
The Proposal contains one original and three printed copies of Volume 1B.	☒	☐	
Each copy is numbered 1 through 3 on its spine.	☒	☐	
A digital copy of Volume 1B was provided.	☒	☐	Uploaded in Box by the due date and time.
Volume 1B contains a credit rating.	☒	☐	No credit rating, but provided a letter stating that they do not have a credit rating.
Volume 1B contains information pertaining to the Proposer's financial capacity criteria per ITP Section 6.5 (Profitability, Liquidity, Leverage, Performance, Other Financial Matters).	☒	☐	
Volume 1B contains recent Financial Statements per ITP Section 6.5(a) – (i).	☒	☐	
Guarantor Letter of Support – If the Proposer or any Equity Member includes a Guarantor as part of its submission, then the Proposal shall include a letter from each Guarantor stating that it will provide a performance guaranty in the form as set forth in Section 6.5 of the RFP.	☐	☒	N/A - No Guarantors identified on Form D.
VOLUME 2 – EXECUTIVE SUMMARY AND TECHNICAL PROPOSAL			
The Proposal contains one original and five printed copies of Volume 2.	☒	☐	
Each copy is numbered 1 through 5 on its spine.	☒	☐	
A digital copy of Volume 2 was provided.	☒	☐	Uploaded in Box by the due date and time.

EXECUTIVE SUMMARY			
The Executive Summary contains a legal description of the Proposer's form of organization, identifies the lead entity, the percentage of interest held by the Equity Members, and all entities that will have joint and several liability for the Contract or that will provide Guaranties.	☒	☐	
The Executive Summary contains a summary of the Proposer's understanding and approach to the Work, including procurement, construction, and coordination with third parties.	☒	☐	
The Executive Summary contains financial information regarding the Proposer's financial strength and capability to undertake and complete the Work.	☒	☐	
TECHNICAL PROPOSAL			
The Technical Proposal includes a description of the Proposer's understanding of the Work.	☒	☐	
The Technical Proposal identifies at least one Key Personnel who is a California registered Professional Engineer.	☒	☐	
The Technical Proposal includes a schedule showing mobilization, construction of track and OCS work, design and construction of systems work, testing, and commissioning for the 119-mile First Construction Section.	☒	☐	
References – The Proposer provides at least three clients as references as required by section 6.6.2 (a) of the ITP.	☒	☐	
Reference Projects – The Proposer provides reference project(s) for each of their references as required by section 6.6.2 (b) of the ITP.	☒	☐	
Understanding of the Contract and Delivery Approach – The Technical Proposal contains a description of the Proposer's understanding of the contract and delivery approach as required by 6.6.2(c) of the ITP.	☒	☐	
Proposer Team (6.6.2(d)) – The Technical Proposal contains a description of the Proposer team.	☒	☐	
Key Personnel and Roles (6.6.2(e)) – The Technical Proposal includes information regarding California professional or other licenses held by the Proposer's Key Personnel.	☒	☐	
Understanding of Project Elements and Requirements – The Technical Proposal contains a description of the	☒	☐	

Proposer's understanding of the work requirements and approach to delivery as required by 6.6.2(f) of the ITP.			
Traction Power, Train Control, and Communications Systems Approach (6.6.2(h)) – The Technical Proposal contains a description of the Proposer's approach to delivery of the systems work.	☒	☐	
Risk Management and Integration Approach (6.6.2(i)) – The Technical Proposal contains a description of the approach for risk management and integration.	☒	☐	
O&M Phase Benefits (6.6.2(j)) – The Technical Proposal contains a narrative of the O&M phase benefits of Proposer's approach.	☒	☐	
Small Business (6.6.2 (k)) – The Technical Proposal includes a general description of how it will meet the Authority's Small Business Goals.	☒	☐	
Small Business Performance Plan (6.6.2 (k)) – The Technical Proposal includes a Small Business performance Plan.	☒	☐	
Small Business Communication Plan (6.6.2 (l)) – The Technical Proposal includes a Small Business Communication Plan.	☒	☐	
VOLUME 3 – PRICE PROPOSAL			
The Proposal contains one original volume labelled Price Proposal in a sealed envelope.	☒	☐	